

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201506349	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/17/2015 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/17/2017	Precinct: 69		
Date/Time CV Reported Fri, 07/31/2015 12:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/31/2015 12:09 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			E S U
2. POM Timothy Cote	26745	945619	083 DET
3. POF Alexandra Holovinsky	06912	952857	069 PCT
4. SGT Kevin Devine	00509	925191	069 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Flynn	02969	919054	E S U
2. DTS Albert Romano	4279	940667	ESS 06
3. DTS Terry Avent	01029	932280	E S U
4. DTS Kristen Collins	4151	934669	ESS 09
5. DTS Brian Higgins	07655	931732	E S U
6. DT2 Dale Schultz	07354	899827	E S U
7. DTS Patrick Barry	00249	917283	E S U
8. DTS Thomas Longa	07623	919315	E S U
9. DTS Lenno Hendricks	04817	925441	E S U
10. DI Norman Grandstaff	00000	922445	069 PCT
11. POM Philogene Breville	03121	940974	069 PCT
12. POM Matthew Mauro	13615	949284	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	A . Officer(s) Unidentified
B . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	B . Exonerated
C . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	C . Officer(s) Unidentified
D . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . POM Timothy Cote	Abuse: PO Timothy Cote threatened to notify Administration for Children's Services.	E . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
F . POF Alexandra Holovinsky	Abuse: PO Alexandra Holovinsky strip searched § 87(2)(b)	F . Unsubstantiated
G . POM Timothy Cote	Abuse: PO Timothy Cote failed to show a search warrant to § 87(2)(b)	G . Substantiated
H . SGT Kevin Devine	Abuse: Sgt. Kevin Devine failed to show the search warrant to § 87(2)(b)	H . Substantiated
I . POM Timothy Cote	Abuse: PO Timothy Cote failed to show the search warrant to § 87(2)(b)	I . Substantiated
J . SGT Kevin Devine	Abuse: Sgt. Kevin Devine failed to show the search warrant to § 87(2)(b)	J . Substantiated

Case Summary

On July 17, 2015, § 87(2)(b) filed this complaint with the CCRB via phone.

On July 17, 2015, at approximately 6 a.m., § 87(2)(b) her husband § 87(2)(b) and her § 87(2)(b) son § 87(2)(b) were sleeping at § 87(2)(b) in Brooklyn, when § 87(2)(b) heard an officer behind the door say, “Kick this shit” (**Allegation A**). § 87(2)(b) was wearing panties during the incident with the rest of her body exposed. Officers subsequently entered § 87(2)(b) s residence and they all shouted, “Get the fuck on the floor” (**Allegation B and C**). When she told the officers that she was pregnant and her son was asthmatic all of the officers then stated, “I don’t give a fuck” (**subsumed within Allegation C**). In a separate room, § 87(2)(b) repeated that his wife was pregnant and that her son was asthmatic and an officer him, “I don’t give a fuck” (**Allegation D**). Upon searching the apartment, officers recovered a clip of marijuana in § 87(2)(b) s bedroom. PO Timothy Cote told her to confess all other contraband, otherwise, “Your § 87(2)(b) is going in the system” (**Allegation E**). § 87(2)(b) alleged that after approximately 40 minutes after the officers arrived, PO Alexandra Holovinsky strip searched her (**Allegation F**).

Neither Sgt. Kevin Devine nor PO Cote showed the search warrant to § 87(2)(b) or § 87(2)(b) during this incident (**Allegation G, H, I, and J**). § 87(2)(b) and § 87(2)(b) were arrested and were both charged with § 87(2)(a) 160.50 ; § 87(2)(b) s arrest has since been voided § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during her CCRB interview.
- Neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim in regards to this incident (Board Review 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has one prior CCRB complaint, § 87(2)(b)
- § 87(2)(b) has no prior CCRB complaints (Board Review 17).

- Sgt. Devine has been a member of the NYPD for 15 years and has 18 prior CCRB allegations involving 10 cases; none of which were substantiated. Sgt. Devine currently has one other pending CCRB allegation pleaded against him in case number 201509731. § 87(2)(g)
- PO Cote has been a member of the NYPD for seven years and has four prior CCRB allegations involving one case; none of which were substantiated. § 87(2)(g)
- PO Holovinsky has been a member of the NYPD for three years and has no prior CCRB allegations.

Potential Issues

- The FDNY Legal Department performed a check for the EMS personnel that responded to this incident for the purpose of identifying potential witnesses. However, it was indicated that FDNY EMS did not respond to any jobs at this location nor were there any indication that EMS was on scene. On November 2, 2015, a subpoena was submitted for the FDNY job printout. This document was received on December 15, 2015 (Board Review 22).

Witnesses:

§ 87(2)(b)

§ 87(2)(b) provided a phone statement to the CCRB on August 10, 2015, but failed to provide the CCRB with a sworn statement and was therefore uncooperative with the investigation.

§ 87(2)(b)

§ 87(2)(b) identified her § 87(2)(b) son, § 87(2)(b) as a witness to the incident, but has not responded to attempts to schedule an interview with § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that she heard an officer say, “Kick this shit,” from behind the door and subsequently saw six male officers in ESU gear enter her home. § 87(2)(g)

§ 87(2)(b) alleged that approximately six male officers dressed in black, wearing helmets, holding shields, and wielding guns entered and they all stated, “Get the fuck on the floor,” and “I don’t give a fuck” (Board Review 01). However, § 87(2)(b) was unable to identify these officers and stated that most were Hispanic. She stated that one officer had darker skin and another officer had “chinky eyes” (Board Review 01). § 87(2)(b) stated that he heard two voices yell the aforementioned discourtesies, but did not see which officers did so (Board Review 24). A review of the ESU Supplemental Report indicated that there were nine ESU officers assigned to the entry team (Board Review 23). § 87(2)(g)

§ 87(2)(b) did not see which officer spoke discourteously to § 87(2)(b) since he was in a separate room. In § 87(2)(b) phone statement to the CCRB, he described the subject officer to be either Hispanic or Korean. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Allegation A- Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation C- Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation D- Discourtesy: An officer spoke discourteously to § 87(2)(b)

The investigation was unable to identify any of the officers that spoke discourteously during this incident for the reasons mentioned above. It is therefore recommended that **Allegations A, C, and D** be closed as **officer(s) unidentified**.

Allegation B- Abuse of Authority: Officers entered and searched § 87(2)(b)

in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b) in Brooklyn.

Search warrant number § 87(2)(b), signed by the Honorable § 87(2)(b), was requested by PO Cote and executed on § 87(2)(b), for the location of § 87(2)(b) in Brooklyn. The search warrant authorized and directed the officers to search the location for narcotics (Board Review 10 and Board Review 11).

Article 690.05 of the New York State Criminal Procedure Law explicitly states that a search warrant is a court order directing police to conduct a search of a designated premise for purposes of seizing designated property or kinds of property, and to deliver any property so obtained to the court which issued the warrant (Board Review 20).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Allegation E- Abuse of Authority: PO Timothy Cote threatened to notify Administration for Children's Services.

It is undisputed that PO Cote informed § 87(2)(b) that Administration for Children's Services (ACS) would be called to remove § 87(2)(b) § 87(2)(g)

According to § 87(2)(b)'s CCRB interview, she alleged that after officers recovered a clip of marijuana, PO Cote threatened to have ACS remove § 87(2)(b) if she did not tell them where contraband was located in their apartment (Board Review 01). § 87(2)(b) corroborated this during his phone statement to the CCRB (Board Review 24).

PO Cote admitted that he informed § 87(2)(b) that he was going to call ACS to remove § 87(2)(b) due to the fact that § 87(2)(b) and § 87(2)(b) were placed under arrest (Board Review 02). Additionally, Sgt. Kevin Devine stated that he and PO Cote both informed § 87(2)(b) of ACS's possible involvement due to the sales of narcotics at the location (Board Review 05). However, PO Cote and Sgt. Devine both denied threatening to call ACS in regards to § 87(2)(b)'s confession of contraband. Moreover, ACS was never called because § 87(2)(b)'s father was able to retrieve § 87(2)(b) upon § 87(2)(b)'s arrest.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F- Abuse of Authority: PO Alexandra Holovinsky strip searched § 87(2)(b)

§ 87(2)(g)

In § 87(2)(b)'s initial phone statement to the CCRB, she stated that she was wearing underwear during the incident (Board Review 12). During § 87(2)(b)'s CCRB interview, she confirmed that she was topless and only wore a tight bikini-style underwear (Board Review 01). Moreover, she stated that she was seen by EMS while she was still topless (Board Review 07). § 87(2)(b) alleged that PO Holovinsky patted her body down, including over her underwear after EMS spoke with her. During the frisk, PO Holovinsky allegedly cupped and lifted § 87(2)(b)'s breasts. In § 87(2)(b)'s CCRB phone statement, he initially stated that § 87(2)(b) was wearing a bra and panties, but subsequently stated that he could not recall whether she was wearing a bra or not (Board Review 06). After the search, PO Holovinsky subsequently assisted § 87(2)(b) with getting dressed. No sworn testimony was obtained from either § 87(2)(b) or § 87(2)(b).

As mentioned above, the investigation was unable to identify the EMS personnel that § 87(2)(b) interacted with.

Sgt. John Flynn and PO Terry Avent were the initial ESU officers that entered the location and they did not recall seeing § 87(2)(b) topless during the incident (Board Review 03 and Board Review 04). Sgt. Devine and PO Cote also did not recall § 87(2)(b) being topless during the incident (Board Review 02 and 05). PO Holovinsky stated that § 87(2)(b) was dressed in a tube top and pajama shorts and did not see her breasts exposed at any point. PO Holovinsky stated that as per procedure, she patted § 87(2)(b) down while she was still in handcuffs. However, she

denied searching § 87(2)(b) and denied lifting or cupping § 87(2)(b)'s breasts. PO Holovinsky subsequently escorted § 87(2)(b) to the bathroom and helped her change into additional clothes.

Neither the Command Log nor PO Cote's memo book indicated that a strip search was conducted (Board Review 18 and 19).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G: Abuse of Authority- Sgt. Kevin Devine failed to show a search warrant to

§ 87(2)(b)

Allegation H: Abuse of Authority- PO Timothy Cote failed to show a search warrant to

§ 87(2)(b)

Allegation I: Abuse of Authority- Sgt. Kevin Devine failed to show a search warrant to

§ 87(2)(b)

Allegation J: Abuse of Authority- PO Timothy Cote failed to show a search warrant to

§ 87(2)(b)

§ 87(2)(g) [REDACTED] However, it is undisputed that a search warrant was not shown to any of the civilians.

§ 87(2)(b) [REDACTED] alleged that she asked PO Cote to see a copy of the search warrant and he stated that it had been served without ever showing her a copy of the warrant (Board Review 01). § 87(2)(b) [REDACTED] stated that he asked two ESU officers, a Hispanic or Korean officer and another officer whom he could not describe to see the search warrant (Board Review 24). In response, the Hispanic/Korean officer told § 87(2)(b) [REDACTED] "Don't worry about it," and the officer he could not describe told him that another officer would address the issue.

Both Sgt. Devine and PO Cote acknowledged that they were in possession of a copy of the search warrant during the incident. In their CCRB statements, PO Cote and Sgt. Devine stated that they never heard any civilians ask to see a search warrant. The officers affirmed that they did not voluntarily show a copy of the search warrant to any civilian during the incident or see any other officer do so. Sgt. Devine denied instructing any officers to show the search warrant to any civilians. Both PO Cote and Sgt. Devine stated that, according to their understanding, a warrant is only shown to a civilian when a request is made (Board Review 25 and 26).

Patrol Guide Procedure 212-105 requires that "the member of the service executing the search warrant shall, when able to do so safely, show a copy of the search warrant to any of the occupants of the premises" (Board Review 27).

§ 87(2)(g)

it
is therefore recommended that **Allegations G, H, I, J** be closed as **substantiated**.

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date